

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                            |                                            |                                                       |                                               |                                 |
|--------------------------------------------------|--------------------------------------------|--------------------------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Jacqueline Levy(F)              | Team:<br>Team # 5                          | CCRB Case #:<br>201013997                  | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                            |                                            | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 10/12/2010 7:52 PM  | Location of Incident:<br>26 Ebbitts Street | 18 Mo. SOL<br>4/12/2012                    | Precinct:<br>122                                      |                                               |                                 |
| Date/Time CV Reported<br>Tue, 10/12/2010 9:30 PM | CV Reported At:<br>CCRB                    | How CV Reported:<br>Call Processing System | Date/Time Received at CCRB<br>Tue, 10/12/2010 9:30 PM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |

| Subject Officer(s)       | Shield | TaxID  | Command |
|--------------------------|--------|--------|---------|
| 1. POM Joseph Metsopulos | 05821  | 937101 | 122 PCT |
| 2. SGT Robert Barkovich  | 00269  | 920007 | 122 PCT |
| 3. POM Paul Rivera       | 05644  | 940050 | 122 PCT |

| Officer(s)                | Allegation                                                                    | Investigator Recommendation |
|---------------------------|-------------------------------------------------------------------------------|-----------------------------|
| A . SGT Robert Barkovich  | Abuse: Sgt. Robert Barkovich supervised the stop of § 87(2)(b)                | A . Substantiated           |
| B . POM Paul Rivera       | Force: PO Paul Rivera used physical force against § 87(2)(b)                  | B . Unsubstantiated         |
| C . POM Joseph Metsopulos | Abuse: PO § 87(2)(b) Metsopulos frisked § 87(2)(b)                            | C . Substantiated           |
| D . SGT Robert Barkovich  | Abuse: Sgt. Robert Barkovich supervised the search of § 87(2)(b)              | D . Substantiated           |
| E . POM Joseph Metsopulos | Discourtesy: PO Joseph Metsopulos spoke obscenely and/or rudely to § 87(2)(b) | E . Unsubstantiated         |
|                           |                                                                               |                             |
|                           |                                                                               |                             |
|                           |                                                                               |                             |

### **CCRB Testimony**

On October 15, 2010, § 87(2)(b) provided a brief telephone statement regarding the incident (encl. 5A). On October 28, 2010, § 87(2)(b) provided a sworn statement at the CCRB (encl. 5B-C). On April 19, 2011, § 87(2)(b) provided an additional sworn statement at the CCRB (encl. 5F-G). His statements were consistent, except where noted.

On October 12, 2010, at 7:52 p.m., § 87(2)(b) was walking home from Middle Plaza through the parking lot of 26 Ebbetts Street in Staten Island. He was not walking between or touching the cars. Three officers determined through investigation to be PO Joseph Metsopulos, PO Paul Rivera, and Sergeant Robert Barkovich drove up to § 87(2)(b) in a silver unmarked vehicle and said, “Get in the car.” § 87(2)(b) did not see identification and thought they were kidnappers or rapists. He ran away and yelled, “Help!” The officers got out of the vehicle and chased him for a short distance. PO Rivera grabbed him by the shoulders and threw him on the ground. PO Rivera pinned him to the ground and kicked him, causing bruising to his arms, pain to his back, and a red mark to the hand. § 87(2)(b) apologized when the officers identified themselves. PO Metsopulos picked § 87(2)(b) up by the front of the shirt and put him up against a vehicle. The officers spun him around and kicked his legs apart. An officer placed handcuffs on § 87(2)(b) panicked and rocked his upper body back and forth, which he always does when he is nervous. In his telephone statement and first interview, § 87(2)(b) stated that the officers banged his forehead against the vehicle. In his second interview, he stated that he was only put up against a vehicle.

§ 87(2)(b) said to the officers, “Get the ‘cuffs off me. What did I do wrong? I didn’t do anything wrong.” PO Metsopulos said, “Shut the fuck up.” § 87(2)(b) told the officers that his mother was calling and he needed to go home and take his medication. In his second interview, § 87(2)(b) added that one officer held § 87(2)(b) against a car while PO Metsopulos patted his pants pockets, reached into both his right and left pants pockets, and removed his cell phone from his left pants pocket. Sergeant Barkovich stood to the side and was laughing. The officers wanted to look in his phone but § 87(2)(b) did not give them permission. The officers also had him take off his jacket. The officers put his jacket on the ground and stomped on it. § 87(2)(b) s mother’s friend’s son, known through investigation to be § 87(2)(b) saw that § 87(2)(b) was handcuffed and told the officers that § 87(2)(b) had not done anything wrong. The officers asked if § 87(2)(b) knew § 87(2)(b) and told § 87(2)(b) that § 87(2)(b) needed to mind his business. After a few minutes, the officers let § 87(2)(b) go. As the officers were leaving, they told § 87(2)(b) that he should watch his back because they might come back and stop him again. § 87(2)(b) noticed that § 87(2)(b) an individual § 87(2)(b) is familiar with from the neighborhood, had observed part of the incident. § 87(2)(b) did not seek medical treatment for his injuries.

§ 87(2)(b) identified the officers by height and through a subsequent photo viewing.

### **Single Shot Photo Viewing** (encl. 5J-M)

On April 19, 2011, a single photo viewing was conducted with § 87(2)(b) at the CCRB. § 87(2)(b) recognized photo #1, Sergeant Barkovich, and photo #2, PO Metsopulos, as being present during the incident. He stated that PO Metsopulos was the officer who said, “Shut the fuck up,” and was the officer who frisked and searched him. He stated that Sergeant Barkovich was the officer who held him against a car while he was being frisked and searched.

### **Witness:** § 87(2)(b)

- § 87(2)(b) a § 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)

### **CCRB Testimony**

On November 30, 2010, § 87(2)(b) provided a brief telephone statement regarding the incident (encl. 6A). On March 15, 2011, § 87(2)(b) provided a sworn statement at the CCRB (encl. 6B-C). His statements were generally consistent with § 87(2)(b)'s statement.

§ 87(2)(b) was in the parking lot outside of 26 Ebbitts Street in Staten Island. § 87(2)(b) observed a neighbor, who he knows only as § 87(2)(b) and identified via investigation to be § 87(2)(b) in handcuffs up against a vehicle. § 87(2)(b) was rocking back and forth. An officer identified through investigation as PO Metsopulos reached into § 87(2)(b)'s pockets. An officer identified through investigation as Sergeant Barkovich was standing a foot away. § 87(2)(b) approached the officers and spoke to Sergeant Barkovich. § 87(2)(b) informed Sergeant Barkovich that § 87(2)(b) has autism and that was why § 87(2)(b) was rocking back and forth. The officers un-handcuffed § 87(2)(b) and let him go. § 87(2)(b) did not hear anything that the officers said to § 87(2)(b). § 87(2)(b) identified the officers through physical descriptions. He described PO Metsopulos as a Hispanic male who is 5'8" tall, weighs 210 to 220 pounds, with black hair, and in his late twenties or early thirties. He described Sergeant Barkovich as a white male who is 6' tall with a skinny build, with graying black hair, and in his late thirties, older than PO Metsopulos.

### **Single Shot Photo Viewing** (encl. 6D-K)

On March 15, 2011, at approximately 2:15 p.m., a single shot photo viewing was conducted with § 87(2)(b). He viewed photos of PO Ricky Alexander, Sgt. Robert Barkovich, Sgt. Justin Farren, PO Joseph Metsopulos, PO Frank Muzikar, PO Nicholas Rentas, and PO Paul Rivera in that order. § 87(2)(b) did not recognize any officers.

### **Attempts to Contact Civilians**

Between November 22, 2010 and February 11, 2011, the undersigned investigator called § 87(2)(b) at one phone number six times; each time the phone rang continuously with no answer or option to leave a voicemail. On March 1, 2011, the undersigned investigator emailed § 87(2)(b)'s mother. Between March 2, 2011 and March 22, 2011, the undersigned investigator called § 87(2)(b) five times at two additional phone numbers, leaving a message with his mother once and voicemail messages on four occasions at one number; the other number did not have a voicemail box set up. § 87(2)(b)'s mother stated that he was in school at that time. Between November 22, 2011 and January 6, 2011, the undersigned investigator mailed three please call letters, none of which have been returned by the United States Postal Service. A search of BADS on January 6, 2011 showed that § 87(2)(b) had no arrests for which he could be incarcerated. A search of the New York City Department of Correction Inmate Look-up Service on May 19, 2011 confirmed that § 87(2)(b) is not presently incarcerated.

### **NYPD Statements**

#### **Subject Officer: PO Joseph METSOPULOS**

- *PO Metsopulos is a § 87(2)(b).*
- *On October 12, 2010, PO Metsopulos, shield number 5821, worked from 5:30 p.m. until 2:05 a.m. on October 13, 2010. He was assigned to anti-crime with Sergeant Barkovich. He was in plainclothes and was the operator of vehicle number 825, which is a silver Chevrolet Impala.*

### **Memo Book** (encl. 7A-C)

In his memo book, PO Metsopulos noted that at 7:52 p.m., he stopped § 87(2)(b) at the rear of 30 Ebbitts Street. He noted that he completed at Stop, Question, and Frisk sheet.

**CCRB Testimony** (encl. 7D-E)

On April 1, 2011, PO Joseph Metsopulos was interviewed at the CCRB.

On October 12, 2010, at approximately 7:52 p.m., PO Metsopulos and Sergeant Barkovich were in their silver Chevrolet Impala pulling into the parking lot in the rear of 26 Ebbitts Street and 30 Ebbitts Street in Staten Island. He observed § 87(2)(b) walking near parked cars and peering into the cars. § 87(2)(b) was not touching any of the vehicles. PO Metsopulos did not recall whether § 87(2)(b) looked into one car or many cars or for how long he looked in each car. They observed him for twenty or thirty seconds before approaching. He identified himself as a police officer most likely verbally and by displaying his shield; he did not recall where his shield was. He did not recall whether § 87(2)(b) complied when stopped but stated that they did not need to chase him in order to stop him. No one threw or pushed § 87(2)(b) to the ground.

PO Metsopulos asked § 87(2)(b) about having been looking into the vehicles. PO Metsopulos did not recall how § 87(2)(b) responded. § 87(2)(b) did say that he needed to go home and take his medication. PO Metsopulos stated it appeared to him that he was either taking medication or needed medication based on the way he was talking. § 87(2)(b) was never placed in handcuffs.

PO Metsopulos stated that he frisked § 87(2)(b)'s waistband area to check for weapons for his safety and for tools that might be used to break into vehicles. He did not recover anything and did not reach into his pockets. There was no particular reason that PO Metsopulos believed § 87(2)(b) was in possession of a weapon, though he stated that he believed that he might be using a "weapon" to break into vehicles. At no point did any officer say, "Shut the fuck up."

§ 87(2)(b) verbally provided his name. PO Metsopulos did not recall if § 87(2)(b) provided ID for PO Metsopulos to obtain information in order to prepare a UF250. PO Metsopulos stated that he noted in his memo book that a UF250 was filled out and that if he notes it, it is because he prepared it. PO Metsopulos did not recall being informed by a civilian that § 87(2)(b) has autism.

**Subject Officer: SERGEANT ROBERT BARKOVICH**

- *Sergeant Barkovich is a § 87(2)(b).*
- *On October 12, 2010, Sergeant Barkovich, shield number 269, worked from 5:26 p.m. to 2:10 a.m. on October 13, 2010. He was assigned to anti-crime and was working with PO Metsopulos and PO Rivera. They were in plainclothes and an unmarked silver Impala.*

**Memo Book** (encl. 8A-B)

Sergeant Barkovich does not have any memo book entries regarding this incident. His last entry before the time of occurrence was at 6:30 p.m. and his first entry after the time of occurrence was at 11:36 p.m.

**CCRB Testimony** (encl. 8C-D)

On April 8, 2011, Sergeant Robert Barkovich was interviewed at the CCRB. His statement contained the following inconsistencies with PO Metsopulos' testimony:

Sergeant Barkovich, PO Metsopulos, and PO Rivera were on patrol in an unmarked silver Impala. Sergeant Barkovich observed § 87(2)(b) standing between two cars. § 87(2)(b)'s back was facing them but it appeared to Sergeant Barkovich that he was looking into a car. Sergeant Barkovich believed that it was possible that § 87(2)(b) was touching the door handle but he could not see § 87(2)(b)'s hands. Sergeant Barkovich observed § 87(2)(b) near one car for ten seconds. There was nothing that made him additionally suspicious that § 87(2)(b) was breaking into the

vehicle. The officers did not say anything or get out of the vehicle before § 87(2)(b) ran. PO Rivera chased him and stopped him ten feet away by grabbing him by the shoulder. § 87(2)(b) was not thrown to the ground. PO Metsopulos and Sergeant Barkovich exited their vehicle and stood around § 87(2)(b) so that he could not run. The officers identified themselves by displaying their shields. Sergeant Barkovich and PO Metsopulos never made physical contact with § 87(2)(b).

Almost as soon as they stopped § 87(2)(b) approached the officers and told them that § 87(2)(b) has autism. The officers let § 87(2)(b) go. Sergeant Barkovich did not recall if they obtained pedigree information or whether a UF 250 was prepared. § 87(2)(b) was never placed in handcuffs. He was not frisked or searched by any officer. No one told him, “Shut the fuck up.”

#### **Subject Officer: PO PAUL RIVERA**

- PO Rivera is a § 87(2)(b).
- On October 12, 2010, PO Rivera, shield number 5644, worked from 5:30 p.m. to 2:05 a.m. on October 13, 2010. He was assigned to anti-crime with PO Metsopulos and Sergeant Barkovich. He was in plainclothes and an unmarked Impala.

#### **Memo Book** (encl. 9A-B)

PO Rivera does not have any memo book entries regarding this incident. The last entry before the time of occurrence is at 6:00 p.m. and the first entry following the time of occurrence was at 2:05 a.m. on October 13, 2010.

#### **CCRB Testimony** (encl. 9C-D)

On April 15, 2011, PO Paul Rivera was interviewed at the CCRB. There are many discrepancies between PO Metsopulos’ and Sergeant Barkovich’s testimony and PO Rivera’s testimony, described as follows:

PO Rivera observed § 87(2)(b) walking and touching the trunks and bumpers of several cars by placing his hand flat against the cars. PO Rivera observed him for only a brief period of time as they turned into the parking lot. § 87(2)(b) touched three or four cars. PO Rivera believed that he might be pulling up on the trunks to see if they were unlocked. PO Rivera and PO Metsopulos got out of the vehicle. They did not say anything. § 87(2)(b) started running and did not say anything before or while he was running. PO Rivera and PO Metsopulos chased him at a jogging pace for the length of two parking spots. They said, “Police,” and had their shields out. § 87(2)(b) realized they were police and stopped and apologized. The officers never made physical contact with him. He was not thrown to the ground. He was never handcuffed, frisked, or searched. No officer said, “Shut the fuck up.” PO Rivera did not prepare a UF 250 and did not know if a UF 250 was prepared.

#### **NYPD Documents**

##### **Stop and Frisk Log** (encl. 10A-D)

The Stop and Frisk log for the 122<sup>nd</sup> Precinct shows that no Stop and Frisk report was prepared by PO Rivera, PO Metsopulos, or Sergeant Barkovich for anyone matching the age of § 87(2)(b) at the location of occurrence on October 12, 2010.

#### **Status of Civil Proceedings**

- § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of March 10, 2011 with regard to the incident (encl. 11A).

### **Civilians CCRB History**

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2D).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (encl. 2E).

### **Subject Officers CCRB History**

- PO Joseph Metsopulos has been a member of the service for 6 years and there are 2 substantiated CCRB allegations against him (encl. 2A).
  - In case number 201001407, charges were recommended for allegations of a stop and refusal to provide name and/or shield number. This case is pending NYPD review.
- Sergeant Robert Barkovich has been a member of the service for 13 years and there are no substantiated CCRB allegations against him (encl. 2B).
- PO Paul Rivera has been a member of the service for 5 years and there are 4 substantiated CCRB allegations against him (encl. 2C).
  - In case number 201001407, charges were recommended for allegations of a stop, a frisk, a search, and a refusal to provide name and/or shield number. This case is pending NYPD review.

## **Conclusion**

### **Identification of Subject Officers**

- Sergeant Barkovich, PO Rivera, and PO Metsopulos all admitted stopping § 87(2)(b). All officers denied searching § 87(2)(b). Sergeant Barkovich was the supervisor on the scene. Therefore, allegations A and D are being pleaded against Sergeant Barkovich. PO Rivera admitted to chasing § 87(2)(b) though he denied making physical contact with him. Sergeant Barkovich stated that PO Rivera grabbed § 87(2)(b)'s shoulder in order to stop him. § 87(2)(b) identified the subject officer of the force allegation as the officer who chased him and grabbed him by the shoulder. Therefore, allegation B is being pleaded against PO Rivera. PO Metsopulos admitted to frisking § 87(2)(b). § 87(2)(b) identified PO Metsopulos through a photo viewing as the officer who said, "Shut the fuck up." Therefore, allegations C and E are being pleaded against him.

### **Investigation Findings and Recommendations**

#### **Allegations Not Pleased**

In his first interview, § 87(2)(b) alleged that his head was slammed against a vehicle. He did not repeat this allegation in his second interview, though he was consistent in that he was put up against a vehicle. Therefore, an allegation that an officer hit § 87(2)(b)'s head against a vehicle is not being pleaded.

#### **Allegation A: Sergeant Robert Barkovich supervised the stop of § 87(2)(b)**

Sergeant Barkovich, PO Metsopulos, and PO Rivera all admit to stopping § 87(2)(b) stating that they suspected him of attempting to break into parked vehicles. PO Rivera and Sergeant Barkovich stated that PO Rivera chased § 87(2)(b). Sergeant Barkovich stated that PO Rivera grabbed § 87(2)(b)'s shoulder to stop him, though PO Rivera denied making physical contact with § 87(2)(b). Sergeant Barkovich said that he observed § 87(2)(b) for ten seconds in close proximity to the door of

a vehicle with his back to the officers. PO Metsopulos recalled that he observed § 87(2)(b) for twenty to thirty seconds peering into an unknown number of vehicles without touching them. PO Rivera stated that he observed § 87(2)(b) touch the trunks of three or four vehicles in the amount of time it took them to pull into the parking lot. None of the officers specifically recalled § 87(2)(b) carrying anything. PO Metsopulos specifically denied believing that § 87(2)(b) was in possession of a weapon. There is no stop and frisk report documenting § 87(2)(b)'s actions and § 87(2)(b) denied being near the vehicles. PO Metsopulos and § 87(2)(b) both stated that § 87(2)(b) informed the officers that he needed to go home to take medication. No officer recalled if they obtained any information about § 87(2)(b) beyond his name.

A police officer is permitted to stop an individual if he reasonably suspects that the individual “is committing, has committed or is about to commit” a felony or penal law misdemeanor. People v. Saad, 859 N.Y.S.2d 906 (2008 – Crim. Ct. Queens Cty.) (encl. 1A-D); N.Y.S. Criminal Procedure Law, Section 140.50(1) (encl. 1E). Mere flight does not give an officer reasonable suspicion to conduct a stop and, absent additional factors providing reasonable suspicion, pursuit is not permitted. People v. Murrell, 859 N.Y.S.2d 897 (2008 – Sup. Ct. NY County) (encl. 1F-I).

§ 87(2)(b), § 87(2)(g)

**Allegation B: PO Paul Rivera used physical force against § 87(2)(b)**

§ 87(2)(b) alleged that PO Rivera chased him, grabbed him, threw him to the ground, and kicked him. PO Rivera stated that he chased § 87(2)(b) but denied making any physical contact with him. Sergeant Rivera stated that PO Rivera did grab his shoulder but denied that § 87(2)(b) was thrown to the ground. Though § 87(2)(b) stated that he sustained injuries, they were not documented and were not visible at the time of his appearance at the CCRB. § 87(2)(b), § 87(2)(g)

**Allegation C: PO Joseph Metsopulos frisked § 87(2)(b)**

**Allegation D: Sergeant Robert Barkovich supervised the search of § 87(2)(b)**

§ 87(2)(b) alleged that PO Metsopulos frisked by patting his pants pockets and then searched him by reaching into those pockets and removing his cell phone from one of those pockets. § 87(2)(b) an uninvolved party and former NYPD officer, stated he that observed PO Metsopulos search § 87(2)(b) by reaching into his pockets. PO Metsopulos admitted to frisking § 87(2)(b) but denied searching § 87(2)(b). He, Sergeant Barkovich, and PO Rivera deny that § 87(2)(b) was searched. This § 87(2)(b), § 87(2)(g)

PO Metsopulos stated that he believed § 87(2)(b) might have something on him that he would use to break into vehicles but specifically stated that he did not believe § 87(2)(b) was in possession of a weapon. Sergeant Barkovich and PO Rivera also did not state that they believed § 87(2)(b) was in possession of a weapon.

An officer may frisk an individual if he reasonably suspects he or a civilian is in danger of physical injury. N.Y.S. Criminal Procedure Law, Section 140.50 (3) (encl. 1E). The Patrol Guide states that an officer must frisk the individual before a search is conducted and only if a possible weapon is felt may he search him. Patrol Guide, Section 212-11 (encl. 1J-L).

[REDACTED] § 87(2)(b)

[REDACTED] § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]

[REDACTED]

[REDACTED] § 87(2)(b) [REDACTED] §

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED]

[illegible][illegible]

Supervisor: \_\_\_\_\_

|                 |       |      |
|-----------------|-------|------|
| Title/Signature | Print | Date |
|-----------------|-------|------|

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date